

4.7 Place for lodgement of declarations – exceptions

4.7.1 Declaration may be lodged via AES to a different office.

Where for administrative reasons the above normal procedure cannot be applied, the declaration may be lodged via AES:

- (a) To any customs office in Ireland, which is competent to deal with the export procedure concerned (Article 221(2)(c) of the UCC IA refers)
- (b) In another Member State where there are duly justified reasons, as outlined in the following paragraphs. (Article 221 (2) of the UCC IA refers)

Duly justified reasons exist where the lodgement of a declaration to the normal Revenue office via AES would require an economically unreasonable effort by the exporter and may constitute the following:

- (a) Change of contract
- (b) Diversion of goods
- (c) Loss of documents.

Duly justified reasons do not exist:

- (a) where the circumstances can be foreseen
- (b) Where a significant economic advantage accrues to the exporter by lodging the export declaration in another Member State in cases where agricultural refunds are due.

Accordingly, care must be taken in allowing an export declaration to be lodged at an office other than the place for lodging a declaration through normal procedures. Areas of doubts or difficulties in this regard should be referred to Risk and Compliance Policy Branch, Customs Division.

4.7.2 Sub- contracting

In cases involving sub-contracting, the export declaration may also be lodged to the Revenue office responsible for the place where the sub-contractor is established.

(Article 221 (2) of the UCC IA refers)

Subcontracting refers to the process of entering a contractual agreement with an outside person or company to perform a certain type of work.

4.8 Person who may submit a declaration.

4.8.1 General

Declarations may be made by a person who is able to present the goods to customs, or to have them presented. If the declarant is not the exporter, they must be appointed by the exporter and empowered to act as their representative. The declarant must be established in the Union.

(Articles 18 and 170 of the UCC refer)